

At bar, Plaintiff contends that Defendant Carroll engaged in a series of omissions on the day in question that rise to the level of gross negligence, reckless misconduct, criminal misconduct, or conscious, flagrant indifference. See 5/26/26 Opposition at 3:12-4:25, 5:1-5:4, 5:10-14, 6:2-6:3 (and citations therein). The Court is not persuaded.

There is no evidence that Defendant was tasked with or actually assumed supervision of Lenny. There is no evidence that Defendant interacted with Lenny before the incident, knew anything about any dangerous propensities for the dog, or had any reason to anticipate the dog would attack Plaintiff. There is no evidence that Defendant placed or permitted Lenny to be in the staff area. At best, Defendant Carroll's claimed failures, *e.g.*, to notify staff that watching a dog was not her responsibility, or to notify staff she lacked training how to handle a dog like Lenny, etc., would constitute potentially negligent acts. On the record presented, Plaintiff has presented no evidence which creates an issue of material fact as to whether Defendant Carroll acted with the requisite *mens rea*, that is, willful or criminal misconduct, gross negligence, reckless misconduct, or a conscious, flagrant indifference to the rights or safety of Plaintiff. Absent the same, the liability protections or immunity of the Volunteer Protection Act apply to Defendant.

3. CU0002023 Wendy Robinson v. Shellpoint Mortgage Servicing, et al.

One of the parties apparently reserved this date for the filing of a motion; none was filed. This matter is removed from calendar.

4. CU0002418 Andrew Ehlers v. Brandon Murray, et al.

Defendant's motion to compel mediation and stay proceedings pending mediation is denied.

Defendants, property owners, argue that the parties' agreement "contains a dispute resolution provision requiring that any disputes arising between the parties be submitted to mediation prior to the initiation of litigation or arbitration." As such, Defendants seek an order compelling the parties to participate in mediation pursuant to Code of Civil Procedure section 1281.2. The Court is not persuaded.

The Dispute Resolution clause states:

At the sole election and option of Owner, in writing to Contractor, all claims, disputes and matters in question arising out of, or relating to this Agreement or the breach thereof, except for claims which have been waived by the making or acceptance of final payment, shall be decided by the claim's procedure. No claims or disputes between Owner and Contractor shall be arbitrated unless separately elected in writing by Owner at its sole election, option and discretion, in which case, binding arbitration shall take place before the American Arbitration Association under its Construction Industry Rules. *If Owner demands mediation, Contractor shall comply and participate with the mediation sought through the American Arbitration Association under its Mediation selection provisions under its Construction Industry Rules, to take place expeditiously within 60 days of demand.*

Faircloth Decl., Ex. A, § 9.

Moreover, Defendants have “asked” Plaintiff to agree to submit their dispute to mediation on numerous occasions between December 2025 and March 2026. Faircloth Decl. ¶¶ 3, 4. There has been no response apparently from Plaintiff.

As a preliminary matter, it is not entirely clear that Defendants have “demanded” mediation; defendants requested the same. Assuming *arguendo* that the request, as posed, is a demand, the Dispute Resolution clause, literally read, states that the Contractor (Plaintiff) “shall comply and participate with the mediation.” However, it is not so simple.

“Mediation is defined as a “process in which a neutral person or persons facilitate communication between the disputants to assist them in reaching a mutually acceptable agreement.” § 1775.1, subd. (a); Evid.Code, § 1115; rule 3.852(1) [former rule 1620.2(a)].)” *Jeld-Wen, Inc. v. Superior Court* (2007) 146 Cal.App.4th 536, 540. “During this process, a neutral third party with no decisionmaking power intervenes in the dispute to help the litigants voluntarily reach their own agreement.” *Ibid*. “Essential to the mediation process is the concept that the parties are in control of resolving their own dispute.” *Ibid*; see also, Advisory Com. com. to Cal. Rules of Court, rule 3.853 (former rule 1620.3) [“Voluntary participation and self-determination are fundamental principles of mediation”). A court participating in the Civil Action Mediation Program may order a case to mediation if the amount in controversy does not exceed \$50,000 for each plaintiff. Code Civ. Proc. § 1775.5; Cal. Rules of Ct., rule 3.891(a)(1), Local Rule 4.0010.¹ “[A]ny other action may be submitted to court-sponsored mediation, regardless of the amount in controversy, if all the parties so stipulate.” *Jeld-Wen, Inc., supra*, 146 Cal.App.4th at 541; Cal. Rules of Ct., rule 3.891(a)(2).

“The case law and the statutory scheme outlined above emphasize the voluntary nature of mediation.” *Jeld-Wen, Inc., supra*, at 541. “Significantly, the trial court must consider the expressed views of the parties *before* ordering a case to mediation ... and even after a case has been ordered to mediation, the mediator must respect the right of any party to withdraw from the mediation at any time.” *Ibid*. “While trial courts may try to cajole the parties ... into stipulating to private mediation ..., parties cannot be forced or coerced over the threat of sanctions into attending and paying for private mediation as this is antithetical to the entire concept of mediation.” *Id.* at 543.²

Therefore, the Court must deny Defendants’ motion to compel mediation. The parties may, if they choose, agree to participate in mediation. Moreover, the Court would very much encourage the parties to consider the potential advantages of participation in mediation. The Court, however, cannot mandate the same under the circumstances presented.

¹ The Complaint seeks an amount in excess of the damages cap of \$50,000.00.

² The Court has no authority to order mediation under Code of Civil Procedure section 1281.2 as requested by Defendants. That provision applies to enforcement of arbitration agreements.